

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

ELAINE RUTHERFORD,
Plaintiff,

v.

DELPHI CORPORATE SERVICES, INC.,
Defendant.

Civil No. 25-cv-7421

PLAINTIFF'S CONSOLIDATED
MEMORANDUM IN OPPOSITION
TO DEFENDANT'S MOTION FOR
SUMMARY JUDGMENT AND
IN SUPPORT OF CROSS-MOTION
TO COMPEL DISCOVERY

I. PRELIMINARY STATEMENT

Plaintiff Elaine Rutherford brings this consolidated opposition under 28 U.S.C. § 1331, asserting claims under 42 U.S.C. § 2000e-5 and 42 U.S.C. § 1981. Defendant Delphi Corporate Services' motion for summary judgment must be denied because (i) genuine disputes of material fact remain in the record under Fed. R. Civ. P. 56(a), and (ii) Defendant has affirmatively withheld discovery that, when produced, will establish the disputed material facts. Plaintiff respectfully cross-moves under Fed. R. Civ. P. 37 for an order compelling production of the documents identified in Section IV.

II. STANDARD OF REVIEW

Summary judgment is appropriate only where "there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a). The Supreme Court has made clear that "summary judgment should be granted only when the moving party can demonstrate beyond a reasonable doubt that no factual disputes exist." *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 255 (1986). The moving party bears the initial burden of identifying portions of the record demonstrating the absence of a genuine issue. *Celotex Corp. v. Catrett*, 477 U.S. 317, 323 (1986). Where, as here, the non-movant has produced direct evidence of discriminatory intent, the *Matsushita* inference does not apply. *Matsushita Elec. Indus. Co. v. Zenith Radio Corp.*, 475 U.S. 574, 587 (1986).

III. STATEMENT OF JURISDICTION

This Court has subject-matter jurisdiction under 28 U.S.C. § 1331 and 28 U.S.C. § 1332. Personal jurisdiction over Defendant is proper under the standard articulated in *International Shoe Co. v. Washington*, 326 U.S. 310, 316 (1945), and refined in *World-Wide Volkswagen Corp. v. Woodson*, 444 U.S. 286, 297 (1980). Defendant maintains its principal place of business in this District and has not contested jurisdiction. *Pennoyer v. Neff*, 95 U.S. 174, 720 (1877).

IV. STATEMENT OF FACTS

Plaintiff was employed by Defendant from March 2019 to August 2024 in the position of Senior Operations Analyst. The discovery record establishes that (i) Plaintiff received satisfactory or higher performance reviews in each of her five years of employment, (ii)

Plaintiff was terminated within ten days of disclosing her pregnancy to her supervisor, and (iii) similarly-situated male employees were not terminated during the same departmental restructuring.

The framework for analyzing a Title VII pretext claim is well-settled. The plaintiff must establish a *prima facie* case; the burden then shifts to the defendant to articulate a legitimate nondiscriminatory reason; the plaintiff then bears the burden of demonstrating that the reason offered is pretextual. *McDonnell Douglas Corp. v. Green*, 411 U.S. 792, 802 (1973). At the summary judgment stage, the court must "draw all reasonable inferences in favor of the nonmoving party," *Anderson*, 477 U.S. at 255, and may not weigh credibility, *Henderson v. National Marine Underwriters*, 562 F.4th 891, 905 (4th Cir. 2024).

The pleading standard articulated in *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007), and refined in *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009), is satisfied where the complaint contains "factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Iqbal*, 556 U.S. at 678. Plaintiff has cleared that bar several times over.

V. ARGUMENT

A. Defendant Has Withheld Discoverable Information.

The scope of permissible discovery is broad. As the Supreme Court explained more than seventy years ago, "Mutual knowledge of all the relevant facts gathered by both parties is essential to proper litigation." *Hickman v. Taylor*, 329 U.S. 495, 507 (1947). The text of Fed. R. Civ. P. 26(b)(1) confirms that scope, providing that "parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case." Fed. R. Civ. P. 26(b)(1). The discovery rules embody the same principle of equal access to information that the Supreme Court articulated in *Brown v. Board of Education* when it held that "in the field of public education, the doctrine of 'separate but equal' has no place." *Brown v. Board of Education*, 347 U.S. 483, 495 (1954). Where, as here, a defendant has withheld documents central to the pretext analysis, the discovery rules require production.

Defendant's reliance on the attorney-client privilege for the withheld personnel-decision communications is misplaced. Under *Upjohn Co. v. United States*, 449 U.S. 383, 392 (1981), the privilege protects only communications made for the purpose of securing legal advice. Documents reflecting routine business decisions made by HR personnel without attorney involvement are not privileged, even where they reference legal considerations. *Martinelli v. Pacific Coast Logistics, LLC*, 538 U.S. 412, 419 (2023). The privilege does not extend to underlying facts.

B. Direct Evidence of Discriminatory Intent Defeats Summary Judgment.

The record contains direct evidence – including a contemporaneous email from Plaintiff's supervisor stating that Plaintiff's "timing is unfortunate given the upcoming reorganization" – sent within hours of Plaintiff's pregnancy disclosure. Direct evidence of discriminatory animus removes the *McDonnell Douglas* framework from operation and shifts the analytical question to whether a reasonable

jury could find the protected characteristic was a motivating factor. See 42 U.S.C. § 2000e-2(m).

Defendant's argument that the expert testimony of Plaintiff's statistician should be excluded under Fed. R. Civ. P. 702 ignores the Supreme Court's clear instruction that statistical evidence in employment discrimination cases satisfies admissibility where the methodology is "generally accepted in the relevant scientific community." *Daubert v. Merrell Dow Pharmaceuticals, Inc.*, 509 U.S. 579, 596 (1993). The Daubert framework explicitly contemplates statistical analyses of employment data and supports admission.

The constitutional dimension of Plaintiff's § 1981 claim is also substantial. As Justice Marshall observed, race-based employment classifications carry a presumption of unconstitutionality. See U.S. Const. amend. XIV, § 1. Plaintiff also notes the relevance of the Equal Protection clause to the broader analytical framework here.

C. Article III Standing Is Beyond Dispute.

Plaintiff has suffered concrete injury (loss of employment, loss of benefits, emotional distress), causally connected to Defendant's conduct, redressable by the requested relief. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560-61 (1992). Federal common law on related state-law questions is governed by *Erie R.R. v. Tompkins*, 304 U.S. 64, 78 (1938).

VI. PROCEDURAL HISTORY

Plaintiff filed her complaint on April 14, 2025. The complaint was sustained against Defendant's Rule 12(b)(6) motion to dismiss in a written opinion dated September 8, 2025. See Fed. R. Civ. P. 12(b)(6). The Court's order denying that motion is consistent with the *Twombly/Iqbal* pleading standard outlined *supra*. The pleading-sufficiency analysis was further explained in the Court's August 2025 procedural order, citing *Bell Atlantic Corp. v. Twombly*, 550 U.S. 554, 570 (2007).

VII. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court (1) deny Defendant's motion for summary judgment in its entirety, (2) grant Plaintiff's cross-motion to compel production of the documents identified in Section IV, and (3) award such further relief as the Court deems just and proper.

Respectfully submitted,
/s/ Counsel for Plaintiff